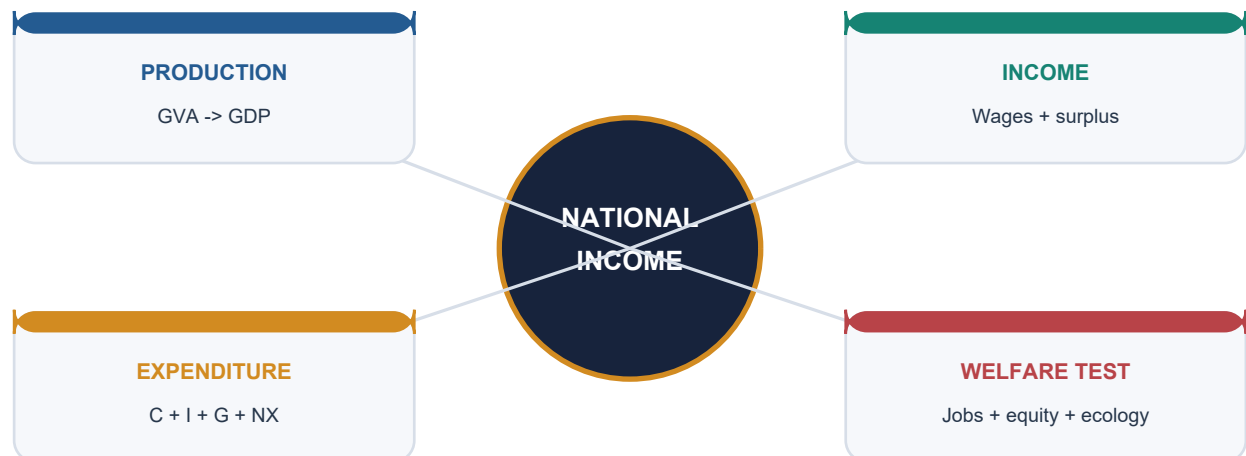


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 22 - Special Provisions - Complete Topic Package

Subject: Indian Polity | **Topic:** 22 | **GS-II + Prelims** | **Export date:** 2026-08-18 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or officially verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal/current control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: basic/Special-Provisions.md -> advanced/22_Special-Provisions.md -> basic/Scheduled-and-Tribal-Areas.md -> basic/Union-Territories.md and necessary federalism/citizenship cross-links -> official Constitution text and the 11 December 2023 Supreme Court judgment. Qdrant was not used.
- [FACT] The Core owner supersedes stale or less-qualified Advanced statements.
- [CURRENT] Legal and institutional status is controlled to **18 August 2026, Asia/Kolkata**.
- [CURRENT] Article 370 remains printed in Part XXI but was rendered inoperative through the 2019 constitutional orders and declaration; the Supreme Court upheld the abrogation in *In re Article 370* on 11 December 2023.
- [CURRENT] Jammu and Kashmir remains a Union Territory with a legislature. Assembly elections were held in September-October 2024; Statehood has not been restored.
- [LIMIT] The 2023 Court recorded the Union's assurance that Statehood would be restored at the earliest. It did not impose a judicial deadline and did not decide the constitutional validity of converting the former State into Union Territories because the Union conceded restoration of J&K Statehood.
- [CURRENT] Ladakh remains a Union Territory without a legislature. Demands for Statehood, Sixth Schedule protection and Article 371-type safeguards have not produced an enacted constitutional change.
- [CURRENT] Articles 371 to 371J continue to operate for 12 States. They were not affected by Article 370's inoperability.
- [LIMIT] Article 371 protections, Fifth Schedule protection and Sixth Schedule autonomy are distinct constitutional techniques; they must not be merged.
- Official Article 370 judgment: https://api.sci.gov.in/supremecourt/2019/29796/29796_2019_1_1501_49019_Judgement_11-Dec-2023.pdf.
- Package target: independently answer-complete Foundation/Core, Optional Advanced refinements, more than 35 text-native visuals, one solved direct/cross-owned Mains PYQ, four routed Prelims demands, 36 original MCQs, 12 remedial MCQs and eight original solved Mains questions.

Roadmap

Stage	Coverage	Exam outcome
Constitutional idea	Part XXI and asymmetry	Explains why equal States may have unequal arrangements
Article 370	pre-2019 operation and Article 35A	Solves history and mechanism traps
2019 changes	C.O. 272/273 and Reorganisation Act	Separates order, resolution and statute
2023 judgment	exact holdings and open questions	Prevents overstatement
Current J&K	UT Assembly and Statehood status	Adds dated GS-II control
Article 371 family	all 12 States	Handles high-frequency matching questions
Tribal safeguards	Fifth/Sixth Schedule comparison	Prevents mechanism confusion
Asymmetric federalism	unity, identity and differentiated rights	Builds analytical answers
Current debates	Ladakh and implementation	Adds qualified current linkage
Workbook	PYQs, MCQs, remedials and solved Mains	Converts coverage into marks

Scope ownership and cross-links

- **Polity 12 - Federal System:** holding-together federation, asymmetry and strong-Union design.
- **Polity 22 - this package:** Article 370 and Articles 371-371J.
- **Polity 25 - Union Territories:** full J&K and Ladakh UT administration.
- **Polity 26 - Scheduled and Tribal Areas:** full Fifth/Sixth Schedule, PESA and FRA architecture.
- **Polity 06 - Citizenship:** single citizenship and differentiated-rights debate.
- [LIMIT] Fifth/Sixth Schedule material appears here only to distinguish special-provision mechanisms and answer current Ladakh linkages; the specialist owner retains full doctrine.

PART I - Complete Foundation and Core learning session

01. Part XXI: constitutional asymmetry by design

Visual 1 - Part XXI concept

```

ONE UNION
|
+-- ordinary State framework
|
+-- temporary/transitional provisions
|
+-- State-specific special provisions
    |
    +-- identity and custom
    +-- regional development
    +-- local employment/education
    +-- law-and-order transition
  
```

Caption: Constitutional equality does not require identical institutional arrangements in every region.

- [FACT] Part XXI is titled "Temporary, Transitional and Special Provisions."
- [FACT] Article 370 concerned Jammu and Kashmir; Articles 371-371J create tailored arrangements for 12 States.
- [ANALYSIS] India uses asymmetry to integrate regions with distinct histories, communities, institutions or development needs.
- [LIMIT] "Special" does not mean sovereign, secessionist or outside the Constitution.

Visual 2 - Three different mechanisms

Mechanism	Constitutional location	Core technique
Article 370	Part XXI	former consent-based application of Constitution to J&K
Articles 371-371J	Part XXI	State-specific safeguards/responsibilities
Fifth/Sixth Schedules	Article 244, Part X	Scheduled-Area protection / autonomous tribal councils

UPSC trap: Similar protective purposes do not make these legally interchangeable.

02. Why asymmetric federalism exists

Visual 3 - Holding-together logic

historical difference
+ cultural identity
+ tribal land/custom
+ regional imbalance
|
v
tailored constitutional guarantee
|
v
integration with negotiated protection

- [ANALYSIS] In a "holding-together" federation, calibrated difference can reduce conflict by making Union membership compatible with local identity.
- [ANALYSIS] Asymmetry may be temporary, permanent, protective, developmental or administrative.
- [LIMIT] Its legitimacy depends on constitutional purpose and proportionality; asymmetry can also create insider-outsider and accountability concerns.

03. Article 370 before 2019

Visual 4 - Pre-2019 operating model

Instrument of Accession fields
|
Parliamentary power in specified matters
|
other constitutional provisions / Union laws
|
Presidential Orders under Article 370(1)
|
consultation or concurrence of J&K government

- [FACT] Article 370 was located in Part XXI and described as temporary.
- [FACT] It mediated the application of the Indian Constitution to Jammu and Kashmir.
- [FACT] Defence, external affairs and communications followed the accession framework; wider application developed through Presidential Orders.
- [FACT] Jammu and Kashmir had its own Constitution and distinctive constitutional arrangements before 2019.
- [LIMIT] Special autonomy did not mean independent sovereignty outside India.

04. Article 35A

Visual 5 - Source and function

1954 Constitution Application Order
|
inserted Article 35A
|
J&K legislature could define permanent residents
|
special rights in land, employment and related benefits

- [FACT] Article 35A entered through a Presidential Order, not a Parliament-passed constitutional amendment.

- [FACT] It protected J&K laws defining permanent residents and conferring specified special rights.
- [ANALYSIS] It illustrates differentiated citizenship inside a system of single Indian citizenship.
- [LIMIT] It ceased to operate with the 2019 constitutional reconfiguration; do not treat it as a current live guarantee.

05. Article 370(3) and the Constituent Assembly problem

Visual 6 - Interpretive question

Article 370(3)

President may declare Article inoperative

|
proviso referred to J&K Constituent Assembly recommendation

|
Constituent Assembly dissolved in 1957

|
Question:

Was Article now permanent, or did presidential power survive?

- [ANALYSIS] The dispute centred on whether dissolution of the J&K Constituent Assembly froze Article 370 permanently.
- [FACT] The 2023 Constitution Bench held that presidential power under Article 370(3) survived and that Constituent Assembly recommendation was not a continuing precondition.

06. The 2019 constitutional instruments

Visual 7 - Four-part legal sequence

President's Rule in J&K

|
C.O. 272: Constitution Application Order

|
Parliamentary resolutions / recommendation framework

|
C.O. 273: Article 370 declared inoperative

|
J&K Reorganisation Act, 2019

- [FACT] On 5 August 2019, C.O. 272 applied the Constitution of India comprehensively to J&K and altered the operative interpretive framework.
- [FACT] Parliamentary resolutions supported the Article 370(3) declaration while the State was under President's Rule.
- [FACT] C.O. 273 declared Article 370 inoperative except for the modified operative statement.
- [FACT] The Jammu and Kashmir Reorganisation Act, 2019 divided the former State into:
 - Union Territory of Jammu and Kashmir with a legislature; and
 - Union Territory of Ladakh without a legislature.
- [FACT] Reorganisation took effect on 31 October 2019.

Visual 8 - Instrument discipline

Instrument	Legal type	What it did
C.O. 272	Presidential Order	applied Constitution and changed interpretive route
Parliamentary action	resolutions/recommendation during President's Rule	supported Article 370(3) process
C.O. 273	presidential declaration	rendered Article 370 inoperative
Reorganisation Act	parliamentary statute	created two Union Territories

UPSC trap: Do not describe all four steps as a single constitutional amendment.

07. Rendered inoperative, not deleted

Visual 9 - Status language

INCORRECT: Article 370 was deleted from Constitution

CORRECT:

Article remains in constitutional text
but was rendered inoperative through the 2019 process
and the process was upheld in 2023

- [FACT] The Article's printed presence and legal operability are different questions.
- [ANALYSIS] Precision matters because "repeal," "deletion," "amendment" and "inoperability" describe different legal events.

08. In re Article 370 (11 December 2023): core holdings

Visual 10 - Holding map

Question	Court's position
Nature of Article 370	temporary provision
J&K sovereignty	no internal sovereignty distinct from other States after accession
President's Article 370(3) power	survived Constituent Assembly dissolution
2019 abrogation	upheld
C.O. 272 Article 367 route	unnecessary to validate because direct Article 370(3) route sufficient
Assembly elections	directed by 30 September 2024
J&K Statehood	Union assurance recorded; restoration at earliest
validity of conversion into UT	not adjudicated conclusively

- [FACT] The Court unanimously upheld the constitutional result of making Article 370 inoperative.
- [FACT] It held that Article 370 embodied a temporary arrangement associated with transition and integration.
- [FACT] It rejected a claim to continuing internal sovereignty.
- [LIMIT] Do not claim the Court conclusively upheld every step of the C.O. 272 Article 367 route; the Court found that route unnecessary for the valid result.
- [LIMIT] Do not claim the Court finally decided that Parliament may permanently convert any State into a Union Territory.

09. Elections and Statehood after the judgment

Visual 11 - Judgment-to-current timeline

11 Dec 2023 judgment
|
election deadline: 30 Sep 2024
|
Assembly elections: Sep-Oct 2024
|
elected J&K government / UT legislature
|
18 Aug 2026: Statehood still pending

- [CURRENT] The election direction was substantially implemented through the 2024 Assembly election.
- [CURRENT] The restoration of Statehood remains pending.
- [LIMIT] "At the earliest" was tied to the Union's assurance; it was not converted into a fixed judicial date.

10. J&K Union Territory Legislature

Visual 12 - Institutional position

Parliament
|
J&K Reorganisation Act, 2019
|
Lieutenant Governor + Legislative Assembly
|
Council of Ministers headed by Chief Minister
|
UT law-making and accountability within statutory limits

- [FACT] Jammu and Kashmir is a Union Territory with a Legislative Assembly.
- [FACT] The Assembly legislates within the fields and limits provided by the Constitution and the Reorganisation Act.
- [FACT] Public order and police remain outside the Assembly's ordinary State-List competence.
- [FACT] The Assembly performs budgetary, deliberative and executive-accountability functions.
- [ANALYSIS] It resembles a State legislature in electoral form but remains a statutory Union Territory legislature with stronger Union/Lieutenant Governor controls.
- [LIMIT] Do not describe present J&K as a State or as constitutionally identical to Delhi.

11. Ladakh's current position

Visual 13 - Ladakh status

Union Territory without legislature
|
Hill Councils and Union administration
|
demands:
Statehood
Sixth Schedule
land/job protection
Public Service Commission
|
No enacted constitutional change by 18 Aug 2026

- [CURRENT] Ladakh has no legislature.
- [CURRENT] Sixth Schedule and Statehood demands remain political/negotiation demands.
- [LIMIT] A proposal, protest, committee discussion or reported offer is not a constitutional amendment.

12. Article 371 family: master map

Visual 14 - Twelve-State spectrum

Article	State(s)	Core protection
371	Maharashtra, Gujarat	regional development boards and equitable allocation
371A	Nagaland	custom, land, justice and special law/order arrangements
371B	Assam	Assembly committee for tribal areas
371C	Manipur	Hill Areas Committee and Governor responsibility
371D/E	Andhra Pradesh, Telangana	equitable local opportunity; Central University provision
371F	Sikkim	integration and representation safeguards
371G	Mizoram	custom, land and justice protections
371H	Arunachal Pradesh	Governor's law/order responsibility
371I	Goa	minimum Assembly size

Article	State(s)	Core protection
371J	Karnataka	Kalyana Karnataka regional development and local opportunity

Mnemonic groups: Development - 371 and 371J; Custom/land - 371A and 371G; Committees - 371B and 371C.

13. Article 371: Maharashtra and Gujarat

Visual 15 - Regional balance mechanism

Governor's special responsibility
 |
 separate development boards
 |
 annual reporting
 |
 equitable allocation of development expenditure
 |
 opportunity in technical education and State services

- [FACT] Maharashtra provisions concern Vidarbha, Marathwada and the rest of Maharashtra.
- [FACT] Gujarat provisions concern Saurashtra, Kutch and the rest of Gujarat.
- [ANALYSIS] The Article constitutionalises intra-State regional equity rather than cultural autonomy.

14. Article 371A: Nagaland

Visual 16 - Assembly-consent shield

Act of Parliament concerns:
 Naga religious/social practices
 customary law and procedure
 customary civil/criminal justice
 ownership/transfer of land and resources
 |
 does not apply to Nagaland
 unless State Assembly resolves otherwise

- [FACT] Article 371A protects four specified fields from automatic parliamentary-law application.
- [FACT] It includes special transitional arrangements for Tuensang and a Governor law-and-order responsibility in the constitutionally specified context.
- [ANALYSIS] This is one of the strongest consent-based protections in the Article 371 family.
- [LIMIT] It does not create a general Nagaland veto over every Act of Parliament.

15. Article 371B: Assam

Visual 17 - Tribal Areas Committee

President's order
 |
 Assam Legislative Assembly committee
 |
 members elected from Sixth Schedule tribal areas
 |
 specified additional members if provided

- [FACT] Article 371B enables a special Assembly committee for Assam's tribal areas.
- [ANALYSIS] It embeds tribal-area voice inside the State legislature rather than transferring all power to a separate State institution.

16. Article 371C: Manipur

Visual 18 - Hill Areas safeguard

Hill Areas Committee in Assembly
+
Governor's special responsibility
+
Governor's report to President
=
institutional protection for hill interests

- [FACT] Article 371C concerns a committee of members elected from Hill Areas.
- [FACT] Presidential orders structure committee functioning and State business.
- [ANALYSIS] The provision responds to valley-hill asymmetry through legislative representation and Union-supervised reporting.

17. Articles 371D and 371E: Andhra Pradesh and Telangana

Visual 19 - Equitable opportunity model

regional imbalance
|
Presidential Orders
|
local cadres / local areas
|
equitable public employment and education opportunity

- [FACT] Article 371D authorises special arrangements for equitable opportunities and facilities in public employment and education.
- [FACT] It permits organisation of local cadres and residence/local-area preferences through constitutional orders.
- [FACT] Its framework extends to Andhra Pradesh and Telangana after bifurcation.
- [FACT] Article 371E empowers Parliament to establish a Central University in Andhra Pradesh.
- [LIMIT] Article 371E is an enabling university provision, not a general local-reservation clause.

18. Article 371F: Sikkim

Visual 20 - Integration safeguards

Feature	Constitutional purpose
Assembly not below 30	representative stability
one Lok Sabha seat	Union representation
protection of different population sections	transition and social balance
continuity of laws/courts	orderly integration
Governor responsibility for peace and equitable arrangement	transitional safeguard

- [FACT] Article 371F accompanied Sikkim's admission as a State through the Thirty-sixth Amendment, 1975.
- [ANALYSIS] It is a constitutional bridge from a distinct monarchical history into Indian Statehood.

19. Article 371G: Mizoram

Visual 21 - Mizo consent shield

Parliamentary law on:

Mizo religious/social practices
customary law and procedure
customary justice
land ownership/transfer

requires Assembly decision for application

- [FACT] Article 371G resembles Article 371A in its strongest protection fields.
- [FACT] It also fixes a minimum Assembly strength of 40.
- [LIMIT] Nagaland and Mizoram provisions are similar but not textually identical in every institutional detail.

20. Articles 371H and 371I

Visual 22 - Arunachal and Goa

Article	State	Core rule
371H	Arunachal Pradesh	Governor has special law/order responsibility; Assembly minimum 30
371I	Goa	Assembly minimum 30

- [FACT] The Arunachal Governor acts after consulting the Council of Ministers but exercises individual judgment in the constitutionally specified law-and-order field.
- [LIMIT] This special responsibility is not a licence for personal control over all State policy.

21. Article 371J: Karnataka

Visual 23 - Kalyana Karnataka model

separate development board

+

equitable development funding

+

local reservation in education

+

local reservation in specified State posts

- [FACT] Article 371J was inserted by the Ninety-eighth Amendment, 2012.
- [FACT] It concerns the historically named Hyderabad-Karnataka region, now commonly called Kalyana Karnataka.
- [ANALYSIS] Like Article 371, it targets intra-State backwardness, but it adds explicit local education and employment measures.

22. Strongest Article 371 protections

Visual 24 - Strength spectrum

DEVELOPMENTAL

371 / 371J

|

REPRESENTATIONAL

371B / 371C / 371F

|

ADMINISTRATIVE / LAW-ORDER

371H

|

CONSENT OVER CUSTOM-LAND LAWS

371A / 371G

- [ANALYSIS] Strength depends on the legal subject protected, not merely the Article number.
- [FACT] Articles 371A and 371G prevent automatic application of specified parliamentary laws unless the State Assembly decides otherwise.

23. Article 371 versus Fifth Schedule

Visual 25 - Different constitutional tools

Axis	Article 371 family	Fifth Schedule
Location	Part XXI	Article 244 + Fifth Schedule
Unit	named State/region	Scheduled Areas
Core actor	Governor/Assembly/President varies	President, Governor, TAC
Main logic	tailored State-specific arrangement	protection and supervised administration
Land/custom	only specified provisions, especially 371A/G	Governor regulation powers for tribal land/money-lending

- [FACT] Fifth Schedule Scheduled Areas currently exist in ten States.
- [FACT] The President declares Scheduled Areas; the Governor reports and may make protective regulations subject to presidential assent.
- [LIMIT] A State covered by Article 371 may also interact with other tribal protections, but one mechanism does not legally replace the other.

24. Article 371 versus Sixth Schedule

Visual 26 - State protection versus autonomous councils

Axis	Articles 371A/G etc.	Sixth Schedule
Protection holder	State/Assembly arrangements	autonomous district/regional councils
Geographic coverage	named States	tribal areas in Assam, Meghalaya, Tripura, Mizoram
Law-making	State consent in specified fields	council laws on listed local subjects
Fiscal/judicial powers	article-specific	specified taxation and village-court powers
Current Ladakh demand	Article 371-type option discussed	Sixth Schedule extension demanded

- [FACT] Sixth Schedule ordinary district councils combine limited legislative, judicial and fiscal powers.
- [LIMIT] Ladakh is not currently a Sixth Schedule area.

25. Fifth and Sixth Schedule rapid comparison

Visual 27 - Protection versus self-government

Fifth Schedule	Sixth Schedule
Scheduled Areas in ten States	tribal areas in AMTM
Tribes Advisory Council	Autonomous District/Regional Councils
Governor protective regulations	council law-making in specified fields
President declares areas	Governor organises autonomous districts/regions
Union directions and annual report	devolved legislative, judicial and fiscal functions

Mnemonic: Sixth Schedule = Assam, Meghalaya, Tripura, Mizoram.

26. North Eastern Council

Visual 28 - NEC is statutory, not Article 371

North Eastern Council Act, 1971
|
regional planning and coordination body
|
Governors + Chief Ministers of NE States
|
three presidential nominees
|
Union Home Minister: ex-officio Chairman
DoNER Minister: ex-officio Vice-Chairman

- [FACT] The NEC is a statutory regional body, not a constitutional Article 371 institution.
- [FACT] Sikkim was included through the 2002 amendment framework.
- [LIMIT] Always recheck current ex-officio administrative arrangements before a date-specific answer.

27. Asymmetry and equality

Visual 29 - Equality test

formal equality
same rule for every region

versus

substantive equality
different protection for different vulnerability/history

- [ANALYSIS] Special provisions can be defended as substantive equality: unequal conditions may need differentiated treatment.
- [ANALYSIS] Critics see barriers to mobility, land ownership and uniform citizenship.
- [LIMIT] Constitutional differentiation is not automatically discriminatory; purpose, history and proportionality matter.

28. Asymmetry and national integration

Visual 30 - Two competing readings

Integration reading	Erosion reading
recognises identity and reduces alienation	entrenches exceptionalism
protects land/custom from majoritarian law	creates insider-outsider barriers
enables negotiated accession/peace	may weaken common-market mobility
accommodates regional backwardness	can be politically manipulated

- [ANALYSIS] The better verdict is conditional: asymmetry strengthens integration when it protects genuine vulnerability through accountable institutions; it weakens trust when changed without meaningful consultation or implemented as patronage.

29. Consent and consultation

Visual 31 - Graduated participation

ordinary consultation
|
Governor special responsibility
|
Assembly committee
|
Assembly resolution needed for specified Union laws

- [ANALYSIS] The Article 371 family contains different intensities of local voice.
- [FACT] Article 371A/G's Assembly-decision requirement is stronger than mere gubernatorial consultation.

- [LIMIT] Consent in specified fields cannot be expanded into a general sovereignty claim.

30. Land, resources and indigenous protection

- [FACT] Article 371A expressly protects ownership and transfer of land and its resources in Nagaland from automatic parliamentary-law application.
- [FACT] Article 371G protects land ownership/transfer in Mizoram's specified consent fields.
- [ANALYSIS] Land protection links culture, livelihood, ecology and political identity.
- [LIMIT] Resource governance remains subject to the exact constitutional text, State law, judicial interpretation and other Union competences.

31. Current Ladakh debate

Visual 32 - Constitutional options debated

Demand	What it would require	Status 18 Aug 2026
Statehood	parliamentary reorganisation law	not enacted
Legislature without Statehood	parliamentary statutory change	not enacted
Sixth Schedule	constitutional amendment/schedule extension	not granted
Article 371-type protection	constitutional amendment	not granted
stronger Hill Councils	statutory/executive reform	subject to continuing debate

- [ANALYSIS] The demand combines identity, ecology, land, employment and democratic representation.
- [LIMIT] Strategic-border concerns are policy considerations, not constitutional proof against autonomy.

32. Current J&K federal question

Visual 33 - Unfinished constitutional issue

Article 370 result settled by 2023 judgment

|
Assembly election completed

|
Statehood restoration pending

|
scope of permanent State-to-UT downgrade
not finally adjudicated

- [ANALYSIS] The legal settlement of Article 370 does not eliminate the political and constitutional importance of restoring representative State institutions.
- [LIMIT] Separate the upheld abrogation from the open/avoided State-to-UT question.

33. Reform principles for special provisions

Visual 34 - Good asymmetry test

Principle	Operational question
clear purpose	What identity/development problem is protected?
local participation	Does the affected legislature/community have a voice?
accountability	Are special powers reasoned and reviewable?
periodic evaluation	Is development protection delivering outcomes?
rights compatibility	Are outsiders/minorities treated proportionately?
federal trust	Is change made through consultation and constitutional form?

34. Part XXI and Basic Structure

- [FACT] Federalism is part of the Basic Structure.
- [ANALYSIS] No specific Article 371 provision is automatically unamendable merely because federalism is Basic Structure.
- [ANALYSIS] A constitutional amendment dismantling the federal principle could still attract Basic Structure review.
- [LIMIT] Ordinary political disagreement over a special provision does not itself prove Basic Structure violation.

35. Full memory map

Visual 35 - Article sequence

370 J&K former special operation
371 Maharashtra + Gujarat development
371A Nagaland custom/land consent
371B Assam tribal committee
371C Manipur hill committee
371D AP + Telangana local opportunity
371E Central University in AP
371F Sikkim integration
371G Mizoram custom/land consent
371H Arunachal law and order
371I Goa Assembly minimum
371J Karnataka regional development/reservation

PART II - Optional Advanced refinements

36. The Article 370 judgment and constitutional method

- [ANALYSIS] The judgment distinguished the political wisdom of abrogation from constitutional authority.
- [ANALYSIS] By using Article 370's temporary character and continuing presidential power, the Court avoided making the disputed Article 367 modification indispensable.
- [LIMIT] An answer should not compress multiple opinions into a slogan; use only common controlling propositions unless a separate opinion is relevant.

37. President's Rule and federal consent

Visual 36 - Constitutional tension

State institutions suspended under President's Rule
|
Parliament exercises State legislative powers
|
far-reaching change to State's constitutional position
|
question of temporary substitution versus permanent alteration

- [ANALYSIS] Critics argue that using President's Rule for permanent constitutional restructuring weakens federal consent.
- [ANALYSIS] The integration response relies on constitutional text, temporary Article 370 and Parliament's substitute authority during President's Rule.
- [LIMIT] Statehood conversion remains the strongest unresolved dimension; do not pretend the 2023 judgment supplied a universal rule.

38. Differentiated citizenship

- [ANALYSIS] Special land, employment and representation rules differentiate entitlements by residence, community or region.
- [ANALYSIS] Their justification is protective: preventing dispossession and preserving political voice.
- [ANALYSIS] Their risk is exclusion: rigid insider rules may burden national mobility or internal minorities.
- [LIMIT] Use "differentiated citizenship" analytically, not as a claim that India has multiple legal citizenships.

39. Answer-writing evidence discipline

Visual 37 - Legal-source ladder

CONSTITUTION TEXT

- > PRESIDENTIAL ORDER / STATUTE
- > JUDICIAL HOLDING
- > DATED CURRENT STATUS
- > ANALYSIS
- > QUALIFICATION

Example

- Claim: Article 370 was lawfully made inoperative.
- Constitutional anchor: Article 370(3).
- Instrument: C.O. 272/273 and parliamentary action.
- Judicial holding: *In re Article 370* (2023).
- Current status: J&K UT with elected Assembly; Statehood pending.
- Qualification: UT conversion validity was not finally decided.

PYQ, practice and solved workbook

Verified/cross-owned Mains PYQ

PYQ 1 - UPSC GS-II 2025, Q4 - direct application

Verified neutral demand: Discuss the nature of the Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganisation Act, 2019, and briefly describe its powers and functions. **10 marks | 150 words | Primary owner: Union Territories; direct application here**

Model answer

Claim: [FACT] The post-2019 Jammu and Kashmir Assembly is an elected legislature of a Union Territory, not the legislature of a full State.

Named evidence: The Jammu and Kashmir Reorganisation Act, 2019 created J&K as a UT with a legislature and Ladakh as a UT without one. The J&K Assembly makes laws within the Act's permitted State-List and Concurrent-List fields, while public order and police remain outside its ordinary competence. It votes the budget, authorises expenditure, debates public policy and holds the Chief Minister-led Council of Ministers politically accountable.

Analysis: The Assembly restores representative government and regional voice after the 2019 reorganisation, but Parliament's overriding competence and the Lieutenant Governor/Union architecture make it weaker than a State legislature.

Current qualification: [CURRENT] Elections were held in 2024, but Statehood remains pending. [LIMIT] The 2023 Article 370 judgment recorded restoration at the earliest without fixing a deadline.

Verdict: J&K now has democratic self-government within a Union Territory framework; full federal parity awaits Statehood restoration.

Evidence chain: Reorganisation Act -> UT with legislature -> fields/exclusions -> financial/accountability functions -> 2024 election -> pending Statehood.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2024 GS-I Q70

Verified neutral demand: Composition of the North Eastern Council.

Doctrinal solution

- [FACT] NEC is statutory under the North Eastern Council Act, 1971.
- [FACT] It includes Governors and Chief Ministers of the region's States and three presidential nominees.
- [FACT] The Union Home Minister and DoNER Minister hold the current ex-officio leadership roles under the amended framework.
- [LIMIT] NEC is not an Article 371 constitutional body.

Elimination rule: Reject options treating NEC as a Sixth Schedule council or Article 371 committee.

Prelims route 2 - 2022 GS-I Q73 - cross-owned

Verified neutral demand: Consequences of Fifth Schedule status for tribal areas.

Doctrinal solution

- [FACT] President declares Scheduled Areas.
- [FACT] Governor reports annually and may make land/money-lending protective regulations subject to presidential assent.
- [FACT] Union may issue directions to the State.
- [FACT] Tribes Advisory Council is advisory.

Elimination rule: Do not confuse Fifth Schedule supervised protection with Sixth Schedule autonomous councils.

Prelims route 3 - 2025 GS-I Q56 - cross-owned

Verified neutral demand: Executive power and Union role in a Fifth Schedule Scheduled Area.

Doctrinal solution

- [FACT] State executive power continues in Scheduled Areas.
- [FACT] Union executive power extends to giving directions concerning administration.
- [LIMIT] This is not automatic Union takeover or direct day-to-day administration.

Elimination rule: Reject both "no Union role" and "automatic Union administration."

Prelims route 4 - 2026 GS-I Q57 - provisional cross-owner

Verified neutral demand: Constitutional safeguards, schedules, taxation and local representation for SCs/STs.

Doctrinal solution

- [FACT] Fifth/Sixth Schedules operate under Article 244; Sixth Schedule councils possess specified taxation powers.
- [FACT] Legislative and local-body reservations arise from separate constitutional provisions.
- [LIMIT] The local 2026 key is provisional; no official answer letter is inferred.

Elimination rule: Do not attribute Sixth Schedule fiscal powers to a Fifth Schedule Tribes Advisory Council.

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Part location

Articles 370 and 371 provisions are located in:

A. Part XXI. B. Part III. C. Part X only. D. Ninth Schedule.

Answer: A.

Explanation: [FACT] Part XXI contains temporary, transitional and special provisions.

OM2. Article 370 status

The most accurate description is:

A. deleted entirely from the printed Constitution. B. rendered inoperative through the 2019 process. C. fully operational after 2023. D. converted into Article 371.

Answer: B.

Explanation: [FACT] Inoperability is not textual deletion.

OM3. Article 35A source

Article 35A entered through:

A. an ordinary J&K statute. B. the First Amendment. C. the 1954 Presidential Order. D. a Supreme Court judgment.

Answer: C.

Explanation: [FACT] It was not a Parliament-passed constitutional amendment.

OM4. Reorganisation

The 2019 Act created:

A. two full States. B. J&K State and Ladakh State. C. one UT without legislature. D. J&K UT with legislature and Ladakh UT without legislature.

Answer: D.

Explanation: [FACT] Effective from 31 October 2019.

OM5. 2023 judgment

The Court held Article 370 was:

A. temporary. B. a permanent Basic Structure provision. C. outside judicial review. D. a treaty.

Answer: A.

Explanation: [FACT] The Court upheld the abrogation.

OM6. Internal sovereignty

The Court held J&K:

A. retained treaty sovereignty. B. retained no internal sovereignty distinct from other States. C. could veto every Union law. D. remained a dominion.

Answer: B.

Explanation: [FACT] Accession and constitutional integration were controlling.

OM7. Constituent Assembly

The Court held presidential Article 370(3) power:

A. expired in 1957. B. required a referendum. C. survived dissolution of the J&K Constituent Assembly. D. belonged to the Governor.

Answer: C.

Explanation: [FACT] Recommendation was not a continuing precondition.

OM8. Statehood question

Which is accurate?

A. Statehood was restored in 2024. B. Court set 2025 as deadline. C. Court finally upheld every State-to-UT conversion. D. Statehood remains pending and no fixed judicial deadline was imposed.

Answer: D.

Explanation: [CURRENT/LIMIT] The Union assurance was recorded.

OM9. J&K Assembly

The present J&K Assembly belongs to:

A. a Union Territory with legislature. B. a full State. C. an autonomous district. D. a Sixth Schedule region.

Answer: A.

Explanation: [FACT] Statehood is pending.

OM10. Ladakh

Ladakh currently is:

A. a State. B. a Union Territory without legislature. C. a Sixth Schedule autonomous State. D. governed under Article 371A.

Answer: B.

Explanation: [CURRENT] Demands have not changed constitutional status.

OM11. Article 371 States

The Article 371 family covers special provisions for:

A. all States. B. only North-Eastern States. C. 12 States. D. every Union Territory.

Answer: C.

Explanation: [FACT] The family extends from Maharashtra/Gujarat to Karnataka and multiple NE States.

OM12. Article 371

Development boards for Vidarbha/Marathwada and Saurashtra/Kutch arise under:

A. 371A. B. 371D. C. 371J only. D. Article 371.

Answer: D.

Explanation: [FACT] It concerns Maharashtra and Gujarat.

OM13. Nagaland

Article 371A applies to:

A. Nagaland. B. Mizoram. C. Assam. D. Manipur.

Answer: A.

Explanation: [FACT] It protects Naga custom, land and specified justice fields.

OM14. Assam committee

The Tribal Areas committee provision is:

A. 371C. B. 371B. C. 371H. D. 371I.

Answer: B.

Explanation: [FACT] Article 371B concerns Assam.

OM15. Manipur

Hill Areas Committee is associated with:

A. 371F. B. 371G. C. 371C. D. 371J.

Answer: C.

Explanation: [FACT] It includes Governor special responsibility/reporting.

OM16. AP and Telangana

Equitable local opportunity in public employment and education is primarily:

A. 371A. B. 371F. C. 371I. D. 371D.

Answer: D.

Explanation: [FACT] The framework applies to Andhra Pradesh and Telangana.

OM17. Sikkim

Article 371F concerns:

A. Sikkim. B. Goa. C. Karnataka. D. Arunachal Pradesh.

Answer: A.

Explanation: [FACT] It accompanied Sikkim's integration.

OM18. Mizoram

Customary-law and land consent protection is found in:

A. 371B. B. 371G. C. 371H. D. 371I.

Answer: B.

Explanation: [FACT] Article 371G resembles 371A in protected subjects.

OM19. Arunachal Pradesh

Governor law-and-order responsibility is under:

A. 371D. B. 371F. C. 371H. D. 371J.

Answer: C.

Explanation: [FACT] The Assembly minimum is also 30.

OM20. Goa

Article 371I provides principally:

A. land-law consent. B. a Hill Areas Committee. C. local cadres. D. minimum Assembly strength of 30.

Answer: D.

Explanation: [FACT] It is a narrow institutional provision.

OM21. Karnataka

Article 371J concerns:

A. Kalyana Karnataka regional development and local opportunity. B. Saurashtra only. C. Naga customary law. D. Goa's Assembly.

Answer: A.

Explanation: [FACT] Inserted by the 98th Amendment.

OM22. Strongest consent shields

Which pair requires Assembly decision for specified custom/land parliamentary laws?

A. 371B and 371C. B. 371A and 371G. C. 371H and 371I. D. 371 and 371J.

Answer: B.

Explanation: [FACT] Nagaland and Mizoram.

OM23. Fifth Schedule

Scheduled Areas are declared by:

A. Governor. B. State Assembly. C. President. D. Tribes Advisory Council.

Answer: C.

Explanation: [FACT] Consultation with Governor occurs where relevant.

OM24. Sixth Schedule States

The correct group is:

A. Nagaland, Manipur, Arunachal, Sikkim. B. all NE States. C. Assam, Nagaland, Mizoram, Manipur. D. Assam, Meghalaya, Tripura, Mizoram.

Answer: D.

Explanation: [FACT] Use AMTM.

OM25. Fifth Schedule institution

The advisory institution is:

A. Tribes Advisory Council. B. Autonomous District Council. C. North Eastern Council. D. Inter-State Council.

Answer: A.

Explanation: [FACT] TAC does not legislate.

OM26. Sixth Schedule

Autonomous District Councils may exercise:

A. no taxing power. B. specified legislative, judicial and fiscal powers. C. only advisory functions. D. presidential election powers.

Answer: B.

Explanation: [FACT] Powers are limited to Schedule subjects.

OM27. Article 371 versus Sixth Schedule

Which is correct?

A. They are the same mechanism. B. Sixth Schedule is part of Article 371A. C. They are distinct constitutional mechanisms. D. Article 371 applies only to autonomous councils.

Answer: C.

Explanation: [FACT] Part XXI differs from Article 244 schedules.

OM28. Ladakh demand

As of 18 August 2026:

A. Ladakh is a State. B. Sixth Schedule automatically applies. C. Article 371K protects it. D. Statehood/Sixth Schedule demands remain unenacted.

Answer: D.

Explanation: [CURRENT] No constitutional change has been enacted.

OM29. NEC

The North Eastern Council is:

A. a statutory body. B. an Article 371 body. C. a Sixth Schedule district council. D. a constitutional court.

Answer: A.

Explanation: [FACT] It arises under the NEC Act, 1971.

OM30. NEC membership

The NEC framework includes:

A. only Governors. B. Governors, Chief Ministers and presidential nominees. C. only MPs. D. Autonomous Council chiefs only.

Answer: B.

Explanation: [FACT] Ex-officio Union leadership was added under the amended framework.

OM31. Differentiated rights

The strongest constitutional defence is:

A. every difference is permanent. B. uniformity is unconstitutional. C. tailored protection can advance substantive equality and integration. D. special provisions create separate sovereignty.

Answer: C.

Explanation: [ANALYSIS] Purpose and proportionality justify differentiation.

OM32. Basic Structure

Which is accurate?

A. Every Article 371 clause is unamendable. B. Federalism is not Basic Structure. C. Part XXI is outside review. D. Federalism is Basic Structure, but individual special provisions are not automatically unamendable.

Answer: D.

Explanation: [FACT/ANALYSIS] Review concerns the federal principle and amendment effect.

OM33. Article 371A scope

Its Assembly shield applies:

A. only to four specified subject groups. B. to every Union law. C. only to taxation. D. only during emergency.

Answer: A.

Explanation: [FACT] It is strong but subject-specific.

OM34. Article 371E

It empowers Parliament concerning:

A. district councils. B. a Central University in Andhra Pradesh. C. Goa Assembly strength. D. J&K Statehood.

Answer: B.

Explanation: [FACT] Do not confuse with 371D local-opportunity rules.

OM35. Article 370 judgment caution

Which statement is most accurate?

A. Court deleted Article 370 text. B. Court fixed a Statehood date. C. Court upheld abrogation but did not finally adjudicate the UT-conversion validity. D. Court restored Article 35A.

Answer: C.

Explanation: [FACT/LIMIT] The Union assurance made a final ruling on J&K conversion unnecessary.

OM36. Asymmetric federalism

The best description is:

A. multiple sovereignties outside India. B. identical rules for all regions. C. temporary emergency alone. D. constitutionally tailored autonomy/protection within one Union.

Answer: D.

Explanation: [ANALYSIS] Difference operates inside constitutional unity.

Remedial MCQs - strict A -> B -> C -> D rotation

R1. Status trap

Article 370 was:

A. rendered inoperative, not textually deleted. B. moved to Part III. C. replaced by Sixth Schedule. D. restored in 2024.

Answer: A.

Remedy: Separate printed text from legal operability.

R2. Judgment trap

The 2023 Court described Article 370 as:

A. permanent sovereignty guarantee. B. temporary. C. ordinary statute. D. treaty immune from change.

Answer: B.

Remedy: Use the exact holding.

R3. Statehood trap

J&K Statehood:

A. was restored with elections. B. has a judicial deadline. C. remains pending. D. is barred forever.

Answer: C.

Remedy: Elections and Statehood are separate.

R4. Ladakh trap

Ladakh:

A. has an Assembly. B. is under Article 371A. C. is already Sixth Schedule. D. remains a UT without legislature.

Answer: D.

Remedy: Demands are not enacted status.

R5. Nagaland trap

The land/custom shield belongs to:

A. Article 371A. B. 371B. C. 371C. D. 371I.

Answer: A.

Remedy: A = Nagaland; G = Mizoram.

R6. Committee trap

Assam's Tribal Areas Committee is:

A. 371C. B. 371B. C. 371H. D. Fifth Schedule TAC.

Answer: B.

Remedy: Article 371B is an Assembly committee, not the Fifth Schedule TAC.

R7. Local-opportunity trap

AP/Telangana provision:

A. 371F. B. 371J. C. 371D. D. 371I.

Answer: C.

Remedy: D = local cadres/opportunity.

R8. Schedule trap

Sixth Schedule applies in:

A. all tribal States. B. ten Fifth Schedule States. C. Ladakh automatically. D. Assam, Meghalaya, Tripura and Mizoram.

Answer: D.

Remedy: AMTM.

R9. Fifth Schedule declaration

Scheduled Areas are declared by:

A. President. B. Governor. C. Parliament alone. D. TAC.

Answer: A.

Remedy: Governor has reporting/regulation roles, not declaration.

R10. NEC trap

NEC is:

A. constitutional. B. statutory. C. judicial. D. a State legislature.

Answer: B.

Remedy: NEC Act, 1971.

R11. Equality trap

Special provisions may be defended because:

A. every resident has separate citizenship. B. federalism requires secession. C. tailored safeguards can serve substantive equality. D. Article 14 never applies.

Answer: C.

Remedy: Different treatment needs a legitimate protective/developmental purpose.

R12. Source trap

Article 35A came from:

A. Reorganisation Act. B. 36th Amendment. C. Article 371J. D. 1954 Presidential Order.

Answer: D.

Remedy: It was not enacted through Article 368.

Original solved Mains practice

M1. "Asymmetric federalism strengthens Indian unity through constitutional difference." Discuss. (10 marks, 150 words)

Model answer

Claim: [ANALYSIS] Indian unity is not based on institutional uniformity; Part XXI uses tailored guarantees to integrate historically and culturally distinct regions.

Named evidence: Articles 371A and 371G protect customary law and land through Assembly consent. Articles 371 and 371J address regional imbalance. Articles 371B and 371C create tribal/hill representation, while Article 371F managed Sikkim's integration.

Analysis: These provisions reduce fears of cultural absorption, protect vulnerable resources and make Union membership compatible with local autonomy.

Qualification: [LIMIT] Asymmetry may create insider-outsider barriers or patronage if safeguards lack accountability.

Verdict: It strengthens unity when protection is purposeful, locally participatory and reviewable. Constitutional difference is then an instrument of integration, not separate sovereignty.

M2. Critically examine the 2019 changes to Article 370 in light of the 2023 Supreme Court judgment. (15 marks, 250 words)

Model answer

Claim: [FACT] The 2019 process ended Article 370's operative autonomy; the 2023 Constitution Bench upheld the result by treating the Article as temporary and presidential power as continuing.

Mechanism: C.O. 272 applied the Constitution and altered the interpretive route; parliamentary action during President's Rule supported C.O. 273's Article 370(3) declaration. The Reorganisation Act created J&K and Ladakh Union Territories.

Judgment: *In re Article 370* held that J&K retained no separate internal sovereignty, Article 370 was temporary and the President's power survived dissolution of the Constituent Assembly. It found it unnecessary to make the contested Article 367 route essential to validity.

Critique: Integration and uniform rights are advanced; however, using President's Rule when the affected State had no elected voice raises federal-consent concerns.

Qualification: [LIMIT] The Court did not finally decide the validity of converting J&K into a UT; Statehood remains pending.

Verdict: Abrogation is judicially settled, but federal legitimacy requires timely Statehood restoration and representative consultation.

M3. Compare Articles 371A and 371G. (10 marks, 150 words)

Model answer

Claim: [FACT] Articles 371A and 371G are the strongest Part XXI identity safeguards because specified parliamentary laws do not automatically apply without State Assembly decision.

Common fields: religious/social practices, customary law and procedure, customary administration of civil/criminal justice, and land ownership/transfer are protected in Nagaland and Mizoram respectively.

Differences: Article 371A contains Nagaland-specific Tuensang and law-and-order arrangements; Article 371G is tied to Mizoram's settlement framework and fixes a minimum Assembly strength of 40.

Analysis: Both convert cultural protection into a legal consent mechanism rather than a merely advisory promise.

Qualification: [LIMIT] The shield is subject-specific, not a general veto over Parliament.

Verdict: They demonstrate integration through protected custom and land, with State legislatures acting as constitutional consent institutions.

M4. Does differentiated regional protection conflict with single citizenship and equality? Examine. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Special regional rights create differentiated entitlements but do not create separate Indian citizenships.

Conflict: Land, employment and customary-law protections may restrict equal mobility and produce insider-outsider distinctions. Historical Article 35A and current Articles 371A/G are prominent examples.

Justification: Formal sameness can expose small indigenous communities and backward regions to dispossession or permanent disadvantage. Articles 371, 371J and tribal schedules pursue substantive equality, identity and balanced development.

Constitutional balance: Article 14 permits reasonable classification, federalism permits tailored design and judicial review controls arbitrariness. Local minorities and accountability must also be protected.

Qualification: [LIMIT] A protective purpose does not justify every restriction indefinitely.

Verdict: Differentiation is compatible with single citizenship where it is constitutionally authorised, proportionate and connected to vulnerability; it becomes problematic when it hardens into unreviewable exclusion.

M5. Compare Article 371 protections with the Fifth and Sixth Schedules. (15 marks, 250 words)

Model answer

Claim: [FACT] All three protect diversity, but they operate through different units and institutions.

Article 371 family: State-specific arrangements in Part XXI. They range from development boards and local reservations to Assembly consent over custom and land.

Fifth Schedule: Article 244 creates supervised protection in Scheduled Areas. The President declares areas; the Governor reports, modifies laws and makes land/money-lending regulations subject to presidential assent; the TAC advises.

Sixth Schedule: Autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram exercise specified legislative, judicial and fiscal powers.

Analysis: Article 371 protects through the State Constitution relationship; the Fifth protects through guardianship; the Sixth decentralises self-government.

Qualification: [LIMIT] Overlap of geography or purpose does not merge legal powers.

Verdict: The choice between the mechanisms reflects the depth of autonomy sought: tailored State protection, supervised Scheduled-Area administration or autonomous tribal government.

M6. Assess the constitutional and political case for Sixth Schedule protection in Ladakh. (15 marks, 250 words)

Model answer

Claim: [CURRENT] Ladakh's Sixth Schedule demand seeks enforceable protection for tribal identity, land, jobs, ecology and local decision-making after its conversion into a UT without legislature.

Case for: A predominantly tribal and ecologically fragile region faces rapid development and limited representative law-making. Autonomous councils with specified legislative and fiscal powers could deepen local consent and protect resources.

Concerns: Ladakh's strategic border location, existing Hill Councils, inter-regional Leh-Kargil differences and the Sixth Schedule's original north-eastern design require careful institutional adaptation.

Alternatives: Statehood, a UT legislature, stronger Hill Councils or Article 371-type safeguards may address some demands, but differ in legal strength and scope.

Current status: [CURRENT] No Sixth Schedule or Statehood change has been enacted by 18 August 2026.

Verdict: The demand deserves negotiated constitutional protection, but the model should preserve national security while granting real land, employment and democratic safeguards rather than symbolic consultation.

M7. "The unresolved Statehood question is now more important than the settled Article 370 question." Comment. (20 marks, 250 words)

Model answer

Claim: [ANALYSIS] The legality of Article 370's inoperability is settled by the 2023 judgment, while J&K's federal status remains institutionally unfinished.

Settled dimension: The Court held Article 370 temporary, rejected separate internal sovereignty and upheld the presidential declaration. Elections were directed and held in 2024.

Unresolved dimension: J&K remains a UT. The Court recorded the Union's assurance of Statehood at the earliest but fixed no deadline and avoided deciding the validity of the State-to-UT conversion.

Why it matters: Statehood affects federal representation, legislative competence, executive authority, policing and the symbolic equality of J&K with other States. An elected UT Assembly restores democracy but not full federal autonomy.

Counterpoint: Security, administrative transition and parliamentary control may justify sequencing.

Qualification: [LIMIT] Pending restoration does not reopen Article 370 automatically.

Verdict: The constitutional task has shifted from adjudicating special status to completing representative federal normalisation through a clear, credible Statehood process.

M8. Evaluate whether regional-development clauses under Articles 371 and 371J deliver substantive federal equality. (20 marks, 250 words)

Model answer

Claim: [FACT] Articles 371 and 371J address inequality within States rather than autonomy between Union and State.

Design: Article 371 supports development boards, reporting, equitable development expenditure and opportunity for identified regions of Maharashtra and Gujarat. Article 371J creates a development board and local education/employment measures for Kalyana Karnataka.

Strength: Constitutional recognition prevents backward regions from disappearing inside State-wide averages and can direct funds, seats and posts toward persistent disadvantage.

Weakness: Boards may become advisory, data may be opaque, local reservation can face implementation disputes and constitutional labels cannot substitute for budgets or administrative capacity.

Reform: publish region-wise outcome indicators, link allocations to deprivation, conduct independent audits, preserve merit through capacity-building and involve local elected bodies.

Qualification: [LIMIT] Region-based preference must remain proportionate and periodically evaluated.

Verdict: These clauses can realise substantive federal equality only when constitutional recognition is converted into measurable development rather than permanent political symbolism.

Final consolidated register notes

Part XXI master idea

Part XXI

Article 370: former J&K special operation, inoperative since 2019

Articles 371-371J: tailored provisions for 12 States

- Asymmetric federalism = different constitutional arrangements within one sovereign Union.
- It protects identity, land, custom, representation or backward regions.
- It does not create separate sovereignty or citizenship.

Article 370 timeline

Date	Event
1954	Presidential Order inserted Article 35A
5 Aug 2019	C.O. 272 and parliamentary process
Aug 2019	C.O. 273 rendered Article 370 inoperative
31 Oct 2019	Reorganisation into J&K UT and Ladakh UT effective
11 Dec 2023	Supreme Court upheld abrogation
Sep-Oct 2024	J&K Assembly elections
18 Aug 2026	Statehood still pending

2023 judgment controls

- Article 370 was temporary.
- J&K retained no separate internal sovereignty.
- President's Article 370(3) power survived Constituent Assembly dissolution.
- Court found C.O. 272 Article 367-route validation unnecessary.
- Elections directed by 30 September 2024.
- Statehood assurance recorded; no fixed deadline.
- UT-conversion validity not finally decided.

Article 371 family

Article	State(s)	Recall
371	Maharashtra/Gujarat	development boards
371A	Nagaland	custom, justice, land consent
371B	Assam	Tribal Areas Committee
371C	Manipur	Hill Areas Committee
371D	AP/Telangana	local opportunity/cadres
371E	Andhra Pradesh	Central University
371F	Sikkim	integration safeguards
371G	Mizoram	custom, justice, land consent
371H	Arunachal	Governor law/order role
371I	Goa	Assembly minimum 30
371J	Karnataka	Kalyana Karnataka development/reservation

Strongest protections

- Articles 371A and 371G: specified parliamentary laws require State Assembly decision.
- The shield covers custom, specified justice, and land fields.
- It is not a general veto over Parliament.

Fifth/Sixth Schedule distinction

Fifth	Sixth
ten States	Assam, Meghalaya, Tripura, Mizoram
President declares Scheduled Areas	Governor organises autonomous districts/regions
Governor + TAC + Union directions	elected autonomous councils
protective regulations	legislative, judicial and fiscal powers
guardianship model	self-government model

Current controls

- J&K = UT with legislature; Statehood pending.
- Ladakh = UT without legislature.
- Ladakh Sixth Schedule/Statehood demand is not enacted.
- Article 370 is inoperative, not deleted.
- Article 371 provisions remain fully distinct and operative.
- NEC is statutory, not an Article 371 body.

Answer-writing evidence bank

Claim	Named evidence	Qualification
Article 370 result is settled	C.O. 272/273 + <i>In re Article 370</i>	UT conversion left open
asymmetry integrates diversity	Articles 371A/G/F	may create exclusion risks
regional equality needs differentiation	Articles 371/371J	implementation must be measured
tribal mechanisms differ	Article 244 + Schedules	do not merge with Part XXI
J&K democracy restored partly	2024 Assembly election	Statehood still pending
Ladakh demand is live	current negotiations/protests	no enacted change

Final verdicts

- **Article 370:** inoperative and judicially upheld; precision requires acknowledging the open Statehood dimension.
- **Article 371:** calibrated autonomy and development inside one Union.
- **Asymmetry:** defensible when protective, participatory and accountable.
- **J&K:** elected UT government is democratic restoration, not full federal restoration.
- **Ladakh:** constitutional safeguards remain a negotiated demand, not current law.

Last-minute traps

1. Part XXI, not Part III.
2. Article 370 inoperative, not deleted.
3. Article 35A came through the 1954 Presidential Order.
4. J&K is a UT with legislature; Ladakh is a UT without legislature.
5. Elections were held in 2024; Statehood remains pending.
6. Court set no Statehood deadline.
7. Court did not finally decide the UT-conversion validity.
8. Article 371 family covers 12 States.
9. 371A = Nagaland; 371G = Mizoram.
10. 371B = Assam Tribal Areas Committee; 371C = Manipur Hill Areas Committee.
11. 371D applies to Andhra Pradesh and Telangana.
12. 371J = Kalyana Karnataka.
13. Article 371 and Sixth Schedule are distinct.
14. NEC is statutory.